

Civil-Military Developments in the Southern Cone and Brazil: An Overview

To apply the framework described in Chapter 1, the remainder of this book examines progress made in civil-military relations (CMR) in the Southern Cone and Brazil. We restrict ourselves to the study of one subregion cognizant of the power of contexts to shape political realities. What can feasibly be achieved in one context may be more difficult in another. Historical legacies, political cultures, economic achievements, and structural environments are but a few of the forces at work that, however indirectly, may shape civil-military affairs in ways distinct from other Latin American subregions, let alone other global regions.

To make meaningful comparisons between countries, it is best to control for as many contextual features of the political landscape as possible. Argentina, Chile, Uruguay, and Brazil are certainly different from each other in many respects. But to the degree that they share considerably more in common with each other than they do with countries outside of the region – to the extent that what draws them together outweighs what pulls them apart – then it becomes easier to evaluate civil-military reform efforts across national boundaries, knowing that it is an “apples to apples” comparison. Once the contextual commonalities are explained, then variations in the rate of progress across countries can be better analyzed.

WHAT DOES THE SUBREGIONAL CONTEXT LOOK LIKE?

All of these nations transitioned to democracies after long periods of authoritarian military rule. This differentiates these regimes from civilian-authoritarian regimes (Spain 1939–75, Egypt 1980–2011), communist

dictatorships (Poland 1945–89), non-communist single party regimes (Mexico 1928–2000), and sultanistic dictatorships (Haiti 1957–86). The regime type is important because it takes a measure of the military's immersion into politics, its direct involvement in governance, and, therefore its stake in protecting its interests in the post-authoritarian period. While the exact relationship between the military institution and its regime component differed, no one disputes the fact that in the Southern Cone and Brazil, the military itself had ultimate political authority. Its officers were posted to strategic positions within the state and oversaw the work of civilians who served the ministries. Presidents were all either active duty or retired generals.¹

Because they held political power, all of these militaries would exit power with the expectation that they would be at the center of negotiations over the terms of the transition, and, with the exception of Argentina, they were. That separates them from the Spanish military, which was largely sidelined from deliberations about the transition to democracy.² And since all of these Latin American armies had been the beneficiaries of unbridled power, it would be a hard conversion for them to adjust to life under democratic rule.

In a subregion where the armed forces had become deeply politicized and accustomed to calling the shots, one would anticipate greater military resistance to change than, say, in Eastern Europe, where communist parties had kept a tight grip on their soldiers and where there was no real tradition of military autonomous intervention.³ The challenge for newly installed democratic leaders in the Southern Cone would be to overcome that resistance and achieve some degree of civilian control. But to what extent would they?

The harshly repressive nature of the Southern Cone military regimes also distinguishes them from some Andean dictatorships (Peru, Ecuador) where militaries ruled more benignly as well as countries in South America that had been democratic for decades (Colombia, Venezuela). High levels of repression marked by death, disappearances, torture, and other unspeakable acts of cruelty meted out on a large scale meant that those

¹ Linz and Stepan, "Relaciones civiles militares en recientes transiciones democráticas del Cono Sur de América Latina," 77–85. The authors argue the militaries were key actors in the transitions given their positions in the preceding regimes.

² Felipe Agüero, *Soldiers, Civilians and Democracy: Post-Franco Spain in Comparative Perspective* (Baltimore: Johns Hopkins Press, 1995), 61–62.

³ Bebler, "Typologies Based on Civilian-Dominated versus Military-Dominated Political System," 261–74.

regimes would leave in their wake a dark and tragic legacy that the reborn democracies would have to contend with. Morally, those societies would be within their rights to demand human rights inquiries, trials, and convictions.

This subregion is also bonded by economic realities. It displays average levels of development that are higher than the rest of the continent, indicated by GPD per capita, employment rates, wage levels, strong middle classes, and lower levels of poverty. The 1991 creation of the common market known as MERCOSUR signaled a new era of economic adjustment, cooperation, and integration (Chile would become a member in 1996) that brought these countries closer together and wrought economic dividends for its members. If development theorists are right, then economic successes should provide a sound platform for democratic advances as well. We might expect that a swelling middle class would bring more stability to these democracies than to those outside the subregion. But for these democracies to be on sound footing, then their CMR would have to progress sufficiently so as not to interfere with political gains. Was that the case in this subregion?

Economic change was paralleled by diplomatic initiatives between Argentina and Brazil and between Argentina and Chile to bring historical enmity and bitter rivalries to a close by settling border disputes and forging nuclear pacts. Military cooperation (not integration) followed on the heels of diplomacy, with a series of concrete confidence-building measures that reduced the risk of armed confrontation between these states through greater transparency, reliability, reciprocity, and communication.⁴ Erstwhile enemies became strategic partners and friendly neighbors. With those moves, existential threats evaporated, and cooperation reached unparalleled heights. As a result, the Southern Cone is now the most peaceful subregion in Latin America.

The peace and stability that these neighbors forged also posed a test for their democratic governments. If there were no close-range threats, what would be the armed forces' primary missions? How could they be repurposed in a way that would not tempt them to turn inward as guardians of internal security? Of equal importance, how could political leaders and

⁴ Francisco Rojas Aravena, "Confidence Building Measures and Strategic Balance: A Step toward Expansion and Stability," in Joseph S. Tulchin and Rojas Aravena (eds.), *Strategic Balance and Confidence Building Measures in the Americas* (Washington, DC/Stanford: Woodrow Wilson Center/Stanford University Press, 1998), 121–38.

citizens alike sustain sufficient interest in defense and military affairs with the subregion at peace?

In sum, the Southern Cone and Brazil comprise a subregion whose nations have much in common with each other. Shared authoritarian legacies, economies, diplomatic initiatives, and strategic environments make up the backdrop for the country analyses that follow. The subregional commonalities allow for a more controlled environment within which to construct overviews of the civil-military reform processes in each country, the subject to which we now turn.

Argentina

If the past is prologue, then nowhere in the Southern Cone is it more applicable than in Argentina. The nation's last authoritarian interlude profoundly shaped its democratic character. In fact, the dictatorship known as the *Proceso* (1976–83) could be considered a critical juncture in Argentine history, one that proved influential by virtue of its cataclysmic demise.⁵ It enabled the nation to set off on a new path with the potential to thoroughly undo what had been done by the ruling generals. The country had suffered the most extensive repression in the subregion,⁶ and its military regime experienced the steepest, most stunning fall from grace of all the dictatorships. These two conditions helped to define what could be achieved and what might have motivated politicians to act.

Because the military had left power thoroughly disgraced and divided, it could not influence and has not (with the exception of a few years during the late 1980s) appreciably influenced the course of events ever since. Argentina had the widest opportunity structures of any of its neighbors, enabling politicians to pursue human rights, military, and defense reforms undeterred, should they have chosen to do so. Moreover, the presidents' political parties by and large enjoyed ample pluralities if not outright majorities in the Congress, giving them the margin needed to enact laws that would institutionalize civilian control and redefine defense

⁵ On critical junctures, see David Collier and Ruth B. Collier, *Shaping the Political Arena* (Princeton: Princeton University Press, 1991).

⁶ Argentina had, by far, the largest number deaths and disappearances in absolute and per capita terms. See Figure 9.2 in Chapter 9. Also see Anthony W. Pereira, *Political Injustice: Authoritarianism and the Rule of Law in Brazil, Chile, and Argentina* (Pittsburgh: University of Pittsburgh Press, 2005), 21.

and security policies for a modern democratic nation. The question remained: were political leaders up to the tasks?

Argentina has made very considerable though uneven progress; not all administrations have taken full advantage of the enormous opportunities afforded to them by the collapse of the authoritarian order. President Raúl Alfonsín made significant strides in bringing military perpetrators to justice at the expense of winning the confidence of his officer corps. President Carlos Menem restored military respect for the chain of command but moved tepidly on defense reforms. And Presidents Nestor Kirchner and Cristina Fernández de Kirchner maintained firm civilian control over the armed forces and made substantial headway in resurrecting human rights trials while also pursuing unprecedented though incomplete reforms in defense planning and the Defense Ministry.

Argentine democracy re-emerged in 1983 following the collapse of the previous military regime. The military's fall from power was hard and largely a function of its own terrible blunders. The *Proceso* failed on many levels: economically, politically, socially, and militarily. It had presided over a ruinous economic program that left hundreds of thousands unemployed and an industrial sector decimated by foreign imports and investors. It had practiced state terror on a scope and level of intensity unknown in modern Argentine history, resulting in the disappearance and death of some 15,000 to 20,000 citizens. The coup de grace was its battlefield defeat in the 1982 war of the *Malvinas*. This sent the regime spiraling downward toward its demise, leaving outgoing commanders unable to influence the terms of transition toward democratic rule. The *Proceso* shattered the confidence, self-image, and unity of the Argentine armed services. Democratic administrations in the future could exploit the military's demoralized and weakened state to their advantage.

In assuming office on December 10, 1983, Radical Party President Raúl R. Alfonsín had embarked upon a historic mission: to be the first Latin American head of state to bring members of his own armed services to trial for human rights abuses. He had a personal stake in this, having defended families of the disappeared at great risk.⁷ Five months before his election, he said that a democratic system could not be reborn by forgetting the past and that to do so would be to build the new system upon an "uncertain

⁷ Jorge A. Camarasa, Rubén Felice, and Daniel González, *El juicio: Proceso al horror* (Buenos Aires: Sudamericana/Planeta, 1985), 24.

ethical foundation.”⁸ But he also had voters in mind. Given the palpable sense of outrage expressed by the electorate in the immediate aftermath of the *Proceso*, it would have been impossible for him to avoid the questions of truth and justice. Indeed, he did not and, as one of his first acts as president, ordered the prosecution of nine former leaders of the dictatorship.⁹ The government would go on to win convictions against five of them.

Alfonsín was cognizant that this move carried risks, and he said his intent was not to indict the entire institution but rather a few who had either ordered the atrocities or who had gone beyond orders by committing excesses. He excused those who, under difficult circumstances, had failed to make sound judgments in carrying out orders that clearly contravened international and national human rights standards. These legal distinctions, however, failed to stem the tide of indictments, as the courts set their own agendas, going after literally hundreds of officers for alleged human rights violations.¹⁰ With the careers of so many soldiers in the balance, resentments grew within the ranks, culminating in military rebellions that shook the Alfonsín government. As a result, the administration submitted a bill to Congress that was passed into law and that exonerated all officers at the rank of lieutenant colonel or lower charged with human rights offenses. Coming on the heels of the April 1987 *Semana Santa* rebellion, the law took on the appearance of a concession that fueled speculation about a negotiated end to the uprising.¹¹ That appearance lowered public confidence in the government and invited junior officers to rebel again. Alfonsín would be forced to leave office several months before the end of his term.

The Alfonsín government was driven by a moral imperative to right the wrongs of the *Proceso* dictatorship by punishing military human rights offenders, reducing the political power of the armed forces, legislatively annulling the notorious National Security Doctrine, and drastically diminishing the defense budget. The government could do this because the balance of power had shifted so decisively following the collapse of the military regime. While these policies made sense, it was inevitable that a strategy equipped with sticks but no carrots would produce rancor

⁸ Ibid. ⁹ República Argentina, Decree Law 158/83, December 1983.

¹⁰ See Enrique Dahl and Alejandro M. Garro, “Argentina: National Appeals Court (Criminal Division) Judgment on Human Rights Violations by Former Military Leaders: An Introductory Note,” *International Legal Materials*, 26 (January–May 1987), 332.

¹¹ Raúl Alfonsín, interview with David Pion-Berlin, July 20, 1993.

within the military. Alfonsín could not phase out the human rights policy in time to phase in a more pragmatic policy of military professionalization and modernization in reward for subordinate behavior. Rather than cultivate a new military submission to civilian control, the government tried to simply enforce it. This would be its downfall.

And yet the first building blocks for a stronger system of civilian control were also laid during this turbulent time. The ministry of defense was inserted into the chain of command between the president and the armed forces, and the defense minister's powers were clarified and enlarged. The heads of each service were downgraded from commanders to chiefs of staff and had to answer directly to the civilian defense minister.¹² A new historic defense law passed in 1988 drew a sharp line between external defense and internal security; the former was a military task while the latter was reserved for police and other security forces.¹³ However, that legislation resulted from the untiring efforts of congressional staffers and even met some resistance from the administration.

With the coming to power of President Carlos Menem (1989–99) emphasis shifted from political retribution to economic readjustment. Certainly Menem had personal motivation to seek more punitive measures, having been imprisoned and reportedly tortured when the junta took over in 1976. Moreover, his Peronist Party and its trade union followers, in particular, had been subjected to brutal repression by the dictatorship. But Menem did not have the same human rights convictions as did his predecessor, nor did he owe his electoral victory to a voting block clamoring for justice. Rather, the public was desperate for economic relief. With inflation hovering at about 5,000 percent, voters hoped that the new president would lift the country out of its economic morass.¹⁴ To the surprise of many, Menem adapted a neo-liberal economic policy, contrary to the statist-populist traditions within his party. Described by Menem himself as a form of “surgery without anesthesia,” the new policies took aim at fiscal deficits, public employment and expenditures, and wages. No one was spared from the fiscal knife, including the armed forces.¹⁵

¹² *Foreign Broadcast Information Service* (FBIS-LAT), December 8, 1983, B5.

¹³ República Argentina, Ley de Defensa Nacional 23.554, April 13, 1988.

¹⁴ Pion-Berlin, *Through Corridors of Power*, 122.

¹⁵ *El Financiero Internacional* de México, May 17, 1991, p. 33. See also Pion-Berlin, *Through Corridors of Power*, 122–27.

Unlike Alfonsín, Menem's objective was not to punish the armed forces politically but rather to insist they not interfere with macro-economic objectives and to make do with less because the rest of society had been called on to do exactly the same. But also in contrast to his predecessor, Menem eventually won the admiration and the compliance of the military through a combined carrot and stick approach. Three months after taking office, Menem pardoned some 280 soldiers who had been brought up on charges under Alfonsín. The following year, he pardoned all of the junta leaders along with those who had mutinied in the years prior. This was an enormous concession to the armed forces, and the majority of officers were grateful. However, one of the former mutineers, Colonel Mohammed Seineldín, who was unhappy with the state of the armed forces, tempted fate and led a revolt against the government on December 3, 1990, just two days before a planned visit to Argentina by US President George H. W. Bush.¹⁶ Menem crushed the rebellion, discharged the ringleaders from the services, and prosecuted hundreds of the participants. From that date forward, Argentina never again heard from the rebels known as *los carapintadas*. Thus Menem had drawn the line, and the military respected him for it.

Relations between the government and the armed forces were cordial but at the expense of notable achievements. As Herbert Huser said, "... goodwill did not translate into concrete defense guidance in the first Menem Administration."¹⁷ Defense policy remained in a moribund state as national security yielded to economic and foreign policy. Menem's economics minister placed defense on the shopping block, but cuts were not made according to strategic priorities, and military preparedness was harmed. A Restructuring Law was passed in 1998 that established guidelines for a new deterrent strategy, four operational contexts, joint planning, education, and training along with procurement and budgeting reforms.¹⁸ Unfortunately, there were no resources to implement the restructuring, since the executive branch would not budge from its IMF-induced austerity plan. The armed forces had no influence within the

¹⁶ Deborah Norden, *Military Rebellion in Argentina: Between Coups and Consolidation* (Lincoln, NE: University of Nebraska Press, 1996), 148–55.

¹⁷ Herbert Huser, *Argentine Civil-Military Relations: From Alfonsín to Menem* (Washington, DC: National Defense University Press, 2002), 135.

¹⁸ República Argentina, Law on Political, Structural and Functional Bases for the Armed Forces Reorganization 24.948, April 3, 1998.

Economics Ministry or its Secretariat of Finance,¹⁹ and the Defense Ministry itself played second fiddle to economics and could not advocate effectively on behalf of the services.

Menem pursued a foreign policy of convergence with the United States, calculating that Argentina's best chance for development lay in a pragmatic reinsertion into the international order, with Washington now its hegemonic center. To earn Washington's confidence, Menem's foreign minister – not the defense minister – arranged for the financing and dispatch of two navy vessels to the Gulf, a mostly symbolic gesture in support for the US war against Iraq.²⁰ Whether it was the Gulf War, the termination of the air force missile project known as Condor II, or the involvement in UN peacekeeping in Croatia, the foreign affairs ministry took the lead while the Defense Ministry was relegated to the sidelines.²¹ While the Defense Ministry's weakness within the government was fully exposed, it also revealed a silver lining: the president had placed military power firmly at the service of foreign policy objectives, further diminishing the military's autonomy.

Menem left power having ended obligatory military service (1994) and having signed into law an internal security measure (1992) that clearly defined the exceptional circumstances under which the armed forces could be called on by the president – under state of siege provisions, to restore order in the face of domestic threats.²² He also left under the shroud of scandal, having been implicated in illegal arms transfers to Croatia, Bosnia, and Ecuador.²³ In brief, the Menem legacy is one of having ended the confrontation between the military and civilian government but at the same time having failed to decisively advance the cause of defense reform owing to the restraints imposed by economic policy.

Menem's successor, President Fernando De la Rúa (1999–2001), never served long enough to take a leadership role on civil-military affairs and defense reform. He was forced to step down only halfway through his

¹⁹ Pion-Berlin, *Through Corridors of Power*, Chapter 5.

²⁰ David Pion-Berlin, "Civil-Military Circumvention: How Argentine State Institutions Compensate for a Weakened Chain of Command," in David Pion-Berlin (ed.), *Civil-Military Relations in Latin America: New Analytical Perspectives* (Chapel Hill: University of North Carolina Press, 2001), 135–60.

²¹ *Ibid.*, 151–53.

²² República Argentina, Ley de Seguridad Interior 24.059, January 6, 1992. República Argentina, Ley Servicio Militar Voluntario 24.429, January 10, 1995.

²³ Huser, *Argentine Civil-Military Relations*, 172–78.

term on December 20, 2001, amid widespread demonstrations, uncontrolled rioting, and looting. Protests were triggered by public wrath over the government's handling of an economic crisis, which had led to the massive exit of funds from the banking system. The uprising had the advantage of testing just how committed the armed forces were to staying out of internal security matters in observance of the nation's defense and security laws. When the president urgently requested on December 19 that it assist in suppressing the protests, the military refused.²⁴

President Nestor Kirchner (2003–7) and his wife and successor, Cristina Fernández de Kirchner (2007–15), were Peronists from the southernmost province of Santa Cruz. A former governor and in years past a Peronist youth militant, Nestor Kirchner took aim at military personnel who in his view might have stood in the way of his policy agenda. In one stunning blow, he purged the military high command of nearly half its officers. As a result, he had in place a compliant officer corps that would not challenge him on the most contentious policy he would promote, namely to reopen human rights cases.²⁵ At his urging, the Congress would overturn the amnesty laws passed under Alfonsín, and the Supreme Court would uphold the constitutionality of that legislation in 2005.²⁶ By September 2006, the courts began to reverse the pardons that had been granted by President Menem. All of this set the stage for a flurry of indictments, and by 2007 some 330 military and police personnel were charged with human rights crimes, 180 were imprisoned or placed under house arrest, and several notorious torturers and military commanders were convicted and sentenced. Prosecution continued through 2015.

With these moves, President Kirchner initiated a confrontational style with his military subordinates that marked the better part of his presidency. At armed forces dinners or anniversaries, Kirchner would often provoke his commanders with reminders of the tragedy that befell the country under military rule, how impunity could no longer be tolerated, and how only justice for the victims of state terror could permit the country to move forward.²⁷ When, on May 24, 2006, a group of officers paid homage in public to those soldiers and civilians killed by leftwing

²⁴ *La Nación*, December 20, 2001; *La Nación*, December 21, 2001.

²⁵ Pion-Berlin, "Informal Civil-Military Relations in Latin America," 526–44.

²⁶ Terence Roehrig, "Executive Leadership and the Continuing Quest for Justice in Argentina," *Human Rights Quarterly*, 31 (2009), 721–47.

²⁷ Telam News Agency, "No Country Can Build Its Future without Justice," August 2, 2003. Access World News, <http://infoweb.newsbank.com/iw-search/we/InfoWeb>.

guerrillas in the 1970s and accused the government of distorting the historical record, Kirchner responded by placing five of them under arrest.²⁸ A few days later, at a tension-filled ceremony at the *Colegio Militar* (Military College), Kirchner repudiated the homage as a re-vindication of state terrorism and then, addressing his military audience, added, “I am not afraid of you.”²⁹

But unlike Alfonsín, Nestor Kirchner and Cristina Fernández de Kirchner would not allow the human rights issue to completely consume their presidencies. Beginning in late 2005, with the appointment of Nilda Garré as defense minister, attention turned to defense reform, overcoming a tendency by civilians to delegate responsibilities to the armed forces. Civilians had exercised *formal* command, but *effective* command fell to the military. While Argentina had built a legislative foundation for reform – most notably through passage of the Defense Law of 1988 – politicians had failed to act on that legislation. In June 2006 that would all change, with the signing of implementation legislation that, according to Defense Ministry officials themselves, marked the end of delegative policies and the beginning of a more assertive approach.³⁰

Institutional reforms were undertaken that gave the Defense Ministry a new lease on life, making it the nerve center for the design of collaborative military practices (see Chapter 5).³¹ The chain of command changed as well. Now residing just below the MOD is the Joint Military Staff (*Estado mayor conjunto*, or EMC), which previously served an advisory role only. With a chief of staff who outranked the heads of each service, the EMC could order the deployment of military units in times of peace, requiring them to conform to principles of joint action.

The EMC’s newfound status also posed a challenge to the Defense Ministry. A new layer of unified military power has now been inserted into the chain of command, and with that comes the concentration

²⁸ *El Clarín*, “Sancionaron a seis militares por el homenaje a las víctimas de la guerrilla,” May 27, 2006.

²⁹ *El Clarín*, “Duro mensaje de Kirchner a los militares: No les tengo miedo,” May 30, 2006.

³⁰ República Argentina, Reglamentación de la Ley 23.554. Decreto 727/2006, June 12, 2006. See Esteban Germán Montenegro, “Más vale pájaro en mano que cien volando: la implementación del control político civil sobre las fuerzas armadas,” in David Pion-Berlin and José Manuel Ugarte (eds.), *Organización de la defensa y control civil de las fuerzas armadas en América Latina* (Buenos Aires: Jorge Baudino Ediciones, 2013), 195–225.

³¹ For a review of the Defense Ministry’s accomplishments after 2005, see Montenegro, “Más vale pájaro.”

of military defense power, expertise, and wisdom. The Defense Ministry would have to “elevate its game,” to prove it is capable of directing this military organization rather than being informally directed by it. And for that to happen, the ministry would need a well-trained civilian staff along with ministers and department heads committed to defense reform.

Brazil

In sharp contrast to the Argentina *Proceso*, the Brazilian military government (1964–85) was considered a success story. Having defeated the radical left movements and presided over what was described as an economic miracle between 1968–73, with growth rates hovering around 10 percent annually, the armed forces exited power with their heads held high and a willingness to throw their political weight around. They have been doing so ever since, occasionally rattling their sabers and more commonly lobbying through official channels, pushing legally for resources and other corporate advantages.³² Outgoing commanders left less room for maneuver for their democratic successors than did the Argentine military, instead projecting their own political power well into the future. Perhaps their greatest victory during the transition was their retention of a constitutional role to preserve domestic law and order, ensuring that civilian leaders could not sever the link between defense and internal security, as they had in Argentina.

That being said, the armed forces no longer threaten the democratic system and more commonly (but not always) avoid interfering in matters well beyond their sphere of expertise. Moreover, civilians have made progress over the past three decades, and some of those successes will be reviewed in this and succeeding chapters. There have been times when political leaders have contested the military for influence when doing so had electoral payoffs for them. But Brazil’s leaders have not overcome their “accommodationist tendencies,” as Wendy Hunter puts it.³³ They will press for reforms only so far, often backing down when they come up against too much military resistance. Where civilian leaders have made advances, they have done so with military blessings, evinced in their drive

³² Wendy Hunter, “Assessing Civil-Military Relations in Post-Authoritarian Brazil,” in Peter Kingstone and Timothy Power (eds.), *Democratic Brazil: Actors, Institutions, and Processes* (Pittsburgh: University of Pittsburgh Press, 2000), 101–25.

³³ *Ibid.*, 125.

to modernize the nation's defense systems and bolster the defense industry, ensuring that the army, navy, and air force receive the tools needed to put them at the cutting edge. Civilian defense ministers have earned justifiable credit for these gains, but they are, in all fairness, pushing up against an open door. They rarely butt heads with the top brass, and thus we have witnessed few strong tests of civilian control that come when political leaders prevail over military objections.

General João Baptista Figueiredo (1979–85) pursued an *abertura* that relaxed harsh restrictions on individual and political rights and proceeded according to the military's own plan and timetable, as the political parties agreed to play by the rules the regime had devised.³⁴ This set the stage for the transition to democratic rule, and when the military finally turned the gavel over to the elected President Tancredo Neves in 1985, many feared the armed forces would continue to exert a disturbingly heavy influence on the course that democracy would take.³⁵

Tancredo Neves died without taking office, bringing Vice President José Sarney to office. Sarney (1985–90) proved to be a staunch ally of the military who agreed to leave the military's Self Amnesty of 1979 untouched, to allow the existing Congress to write the new Constitution (many conservative legislators had seats, giving the military more confidence), and to preserve the military's role in internal security. Debate ensued in 1987–88 over the rewriting of the Constitution, with the well-oiled military lobby visibly present in congressional offices. The military preserved its role as guarantors of law and order, but not before democratic party leaders successfully amended article 142 to allow for military intervention only at the initiative of the constitutional powers. This deterred the military from taking internal security matters completely into its own hands.³⁶ That notwithstanding, the armed forces to this day retain their constitutional law and order license, giving them a stronger hand to play in domestic security matters than their Southern Cone neighbors. The military won many concessions but also lost some during the drafting of the Constitution, with legislators and governors taking

³⁴ Craig Arceneaux, *Bounded Missions: Military Regimes and Democratization in the Southern Cone and Brazil* (University Park, PA: Penn State University Press, 2001), 174–80.

³⁵ See Stepan, *Rethinking Military Politics*; Jorge Zaverucha, "The Degree of Military Political Autonomy during the Spanish, Argentine, and Brazilian Transitions," *Journal of Latin American Studies*, 25, 2 (May 1993), 283–99.

³⁶ Hunter, *Eroding Military Influence in Brazil*, 57–60.

a tougher stand on issues they thought would impact their decision-making authority and electoral fortunes.³⁷

As Brazil's first *directly* elected president since 1961, Fernando Collor de Mello (1990–92), believed he had a mandate to assert civilian control and reduce the military's political clout. This he did to some degree, albeit in the confines of a very brief tenure cut short by a scandal and his subsequent impeachment. He abolished the feared national information service (which had targeted leftists for elimination under military rule), creating instead the SAE, which was headed by a civilian and in which military presence was reduced. He eliminated the National Security Council, replacing it with the National Defense Council, ending the military's monopoly on decision-making in this arena. He stripped the armed forces general staff of ministerial status but could not overcome military resistance to the creation of that nation's first Defense Ministry.³⁸ Finally, Collor de Mello slashed away at the military budget, cutting its federal share from 20.5 percent in 1990 to 14.7 percent in 1992 and leveling military wages with those of civilians, as required by article 31 of the Constitution.³⁹

Throughout the congressional impeachment proceedings against Collor, the armed forces never once interceded – evidence that they were no longer the political arbitrators of old. Vice President Itamar Franco (1992–94) stepped in and, with no electoral mandate of his own, governed as president from a weakened position. Not surprisingly, he largely pursued a strategy of appeasement, never pushing for reforms of military institutions or practices. Contrary to Collor de Mello, he chose an ex-minister of the navy to head up the SAE instead of a civilian. It was through congressional, not presidential, action that defense shares of the budget declined modestly during the Franco period as lawmakers sought to shift resources to public works projects.⁴⁰ The armed forces were not pleased, and retired officers, operating through the *Clube Militar* and freer to express their political opinions, voiced displeasure over wages and resource depletion on behalf of the institution, with some even suggesting a Fujimori-style authoritarian takeover.⁴¹ Franco responded to the saber rattling by making concessions where he could.

³⁷ Ibid., 58–59.

³⁸ Maria Helena de Castro Santos, "The Brazilian Military in Post-Democratic Transition," *Revista Fuerzas Armadas y Sociedad*, 18, 3–4 (2004), 115–46.

³⁹ Ibid., 122; Hunter, *Eroding Military Influence in Brazil*, 110–12.

⁴⁰ Hunter, *Eroding Military Influence in Brazil*, 113.

⁴¹ de Castro Santos, "The Brazilian Military," 123–25.

Unlike his predecessor, President Fernando Henrique Cardoso (1994–2002) earned an impressive electoral victory, defeating Worker Party candidate Luiz Inácio da Silva (Lula) 54.3 percent to 27 percent and winning every state in Brazil except one. His electoral mandate gave him the political room to maneuver on CMR if he had so chosen. But the president's primary goal was to restore economic growth, reduce inflation, and stabilize the currency; defense was not a priority. Nonetheless, Cardoso became the first civilian president to establish guidelines for military action. Titled the Brazilian National Defense Policy, this seven-page document put civilians officially in charge of defense policy, reoriented defense toward threats from abroad, and emphasized Brazil's peaceful coexistence with its neighbors, where diplomacy would be the primary weapon to resolve disputes.⁴² At the same time, this short document was also the product of some negotiation, granting to the armed forces concessions over its Amazonian deployment.

The president took a bolder step in creating the nation's first ever Defense Ministry in 1999. This took convincing since the military had long opposed such a move, with opposition running fiercest within the navy and air force, which both feared the army would end up dominating the new ministry. The president succeeded through a smart, strategic move that simultaneously advanced a measure to financially indemnify families of the disappeared with the ministerial proposal itself. The former was even more objectionable to the armed forces, and so they compromised by settling for the latter. Even in victory, the president was careful to characterize the MOD's creation in a manner that would be more palatable to the generals. The ministry was, in his view, a means to "optimize the defense system" rather than a method to fortify civilian control, as if that goal might have proved just too much for his commanders to take.⁴³ The military was determined to preserve some measure of autonomy and power even as it agreed to work with the new ministry.

In other respects as well, the Cardoso presidency seemed cautious if not deferential toward military priorities. His defense ministers tried not to

⁴² Presidência da República Fernando Henrique Cardoso, *Brazilian National Defense Policy*, 1998, www.defesa.gov.br.

⁴³ Cardoso also seemed motivated by the goal of securing Brazil a seat on the UN Security Council. Having a defense ministry was the international standard and expectation at the time. BBC, "Cardoso Comments on Role of Proposed Defense Ministry," August 13, 1998, www.lexisnexis.com.

ruffle any feathers with the military command,⁴⁴ instead forging cordial relations with it. The armed forces preserved their autonomy over the education and indoctrination of their soldiers (see Chapter 6), and there was no evidence of any change in military role beliefs during this time period.⁴⁵ The military saw improvements in its budget, as real spending on defense grew from 28 billion reais in 1995 to 59 billion in 2002.⁴⁶ In a nod to the military's law and order role, the Cardoso administration dispatched troops in 1995 to occupy refineries to end a national petroleum workers strike and sent the army in to forestall MST land occupations in October 1996 and May 1997.⁴⁷ In Rio de Janeiro, police were ineffectual against gangs and other organized criminal elements, triggering the introduction of troops on several occasions during the Cardoso presidency.

Some authors have described these actions as the routinization of military intervention in internal civilian conflicts.⁴⁸ By the same token, the refinery occupation was presidentially ordered and undertaken on behalf of his economic program of privatization – not on behalf of military objectives. Moreover, the army minister emphasized that his troops would not engage in suppression of the workers and would be withdrawn as quickly as possible,⁴⁹ indicating a strong desire not to repeat the 1988 tragedy when an army invasion of steel mills resulted in the deaths of three workers. The counter-drug operations in Brazilian cities exposed the dangers of setting soldiers loose to hunt down gang members in densely populated favelas, and by 2000, the president was sounding a more cautionary note, saying that soldiers were ill-trained to take on law enforcement roles. He announced plans to place police on the front lines and hold soldiers back in supportive logistical and intelligence gathering roles only.⁵⁰

The election of Workers' Party leader Luis Inácio Lula da Silva as president in 2002 prompted fears of a military takeover. But by the time Lula left office in 2010, he had won the respect if not the admiration of the

⁴⁴ Jorge Zaverucha, "The Fragility of the Brazilian Defense Ministry," *Revista de Sociología Política*, 2 (2006), 107–21.

⁴⁵ Hunter, "Assessing Civil-Military Relations," 122–24.

⁴⁶ Jorge Zaverucha, "How the Military Competes for Expenditure in Brazilian Democracy: Arguments for an Outlier," *International Political Science Review*, 30, 4 (2009), 407–29.

⁴⁷ João R. Martins Filho and Daniel Zirker, "The Brazilian Military under Cardoso: Overcoming the Identity Crisis," *Journal of Interamerican Studies and World Affairs*, 42, 3 (2008), 143–70.

⁴⁸ *Ibid.*

⁴⁹ *Ibid.*, 158.

⁵⁰ Efe news service, "Quienes piden intervención ejército," May 26, 2000.

armed forces. Lula's early priority was to combat hunger, and he earned tremendous credit for programs such as *Bolsa Familia*, which used government funds to help lift millions out of poverty. Defense appropriations were definitely not atop Lula's agenda. In his first year in office, he cut military spending by 20 percent, and by the end of his first term, spending had not regained levels reached in Cardoso's final year.

In his second term, with the economy doing well, Lula turned his attention toward defense. With Brazil emerging as an economic giant, the president believed it was time for it to flex its muscles in the security realm as well. Defense spending rose impressively during the last four years of the Lula presidency. Lula's government spearheaded the creation of the South American Defense Council in March 2009. This was a strictly South American agency that excluded the United States, leaving Brazil as the dominant player. This move coincided with the release of a national defense strategy (see Chapters 5 and 9) that aimed to fulfill the president's aspirations to turn Brazil into a major actor on the world stage and its defense forces into the envy of the region.⁵¹ Not surprisingly, the armed forces were pleased with this strategic document.

With an ambitious strategic plan heretofore enumerated, one would think that the Defense Ministry would quickly become the organizational vehicle to design and implement the government's defense plans. Laws strengthened the ministry's role and authority to oversee a range of defense-related tasks. But in practice the design of the ministry's bureaucratic offices has granted the military essential defense tasks such as policy and strategy formulation, leaving civilians within in charge of more mundane administrative tasks (see Chapter 5). That reflects poorly on the ministry and calls into question any effort to put civilians in charge of key defense functions.

If Brazil trails badly behind its Southern Cone neighbors on any civil-military issue, it is on human rights (Chapter 3). A 1979 amnesty has shielded perpetrators from prosecution for decades, and no one has been sentenced for crimes committed during the dictatorship. Argentina, Uruguay, and Chile have had amnesty laws as well but managed to circumvent those statutes to permit prosecution. Brazilian archives had been sealed preventing human rights attorneys from building cases against military officials. President Lula took some steps to form a truth commission but backed down in the face of military resistance.

⁵¹ República do Brasil, Ministerio do Defesa, *National Strategy of Defense: Peace and Security for Brazil*, www.defesa.gov.br.

His successor, Dilma Rousseff, did finally succeed in creating a truth commission but did not follow up on its recommendation to bring any perpetrators to justice.⁵² Finally, Brazilian governments have yet to break the military's pedagogical grip on its academies. Its teachers are mostly officers, and when educational reforms are made, they are done so without civilian input (see Chapter 6).

Chile

Chile is an unlikely candidate for CMR consolidation, let alone for the democratization of its armed forces. Most scholars didn't give the nation much of a chance to get out from under the weight of its all-powerful armed forces.⁵³ The military left office strong, confident, and united. It set the terms of transition and cast a dark shadow over the nascent democracy that reawakened with the inauguration of elected President Patricio Aylwin in March 1990. Chile was the prototypical tutelary democracy, one designed to protect the corporate interests of its military first and only then attend to the needs of its citizens.

And yet, despite the constraints imposed at the time of its democratic rebirth, Chile has made ample progress, second only to Argentina. It has substantially reduced military power and autonomy, sustained a vigorous prosecution of hundreds of officers for human rights offenses, passed landmark legislation to reform the Constitution and the organizations of defense, and begun to institutionalize its control over defense policy and the military. How was all this possible?

Chile is an example of how CMR are firmly embedded in the larger political system and thus transformed from without, not just from within. Judicial events both abroad and at home and electoral calculations of political parties combined to alter the civil-military balance of power. Pinochet's arrest in 1998 for human rights crimes and the trials that ensued in London reached back to Chile, emboldening Chilean magistrates to reopen investigations while placing the military on the defensive. By the turn of the new century, political parties of the right were finally ready to collaborate with the left-of-center coalition, *Concertación*, to amend the 1980 Constitution in ways that would

⁵² *Latin American Weekly Report*, "Brazil: Truth Commission Does Its Job, Perhaps Too Well," WR-13-21, May 30, 2013.

⁵³ Brian Loveman, "¿Misión Cumplida? Civil-Military Relations and the Chilean Political Transition," *Journal of Interamerican Studies and World Affairs*, 33, 3 (Fall 1991), 35-73.

solidify civilian control over the armed forces. And the military itself would change, as Pinochet retired as army head, as a new generation of officers would be promoted who were untainted by the past, and as their institution sought to refurbish its image by cooperating more with those who wanted to uncover the truth about the disappeared.

The neo-liberal model imposed by General Pinochet during seventeen long years of authoritarian rule achieved economic gains, though not without a great social cost. But the essential components of the economic model were left intact by the military's democratic successor regimes. With their power and some measure of legitimacy preserved as a result of economic policy successes, military leaders in Chile were able to set the terms of their own disengagement from office. Pinochet's 1980 Constitution envisioned eventual regime change but was also designed to defend military prerogatives well into the future. When Pinochet lost the scheduled plebiscite in 1988, the transition was set in motion and unfolded mostly according to the military's own script. A few concessions were granted to the opposition party coalition called *Concertación*, but the military held most of the cards.

For example, Pinochet and the NSC were allowed to designate a number of appointed senators not subject to elections or review. Half of the members of the National Security Council would be military personnel, any two of whom could convene a meeting, even over presidential objections.⁵⁴ The president was still denied the power to remove his service commanders. The armed forces under an older law⁵⁵ continued to receive 10 percent of the revenues from the export of copper, which went into a reserve fund to purchase arms and other items. In the realm of human rights, the military's 1978 Amnesty Law prohibited the prosecution of military and police officers for any human rights crimes committed between September 1973 and March 1978. And security measures granted sweeping powers to the armed forces in the so-called anti-terrorist operations while maintaining broad jurisdiction for the military courts. In all, the military had engineered a transition aimed at securing prerogatives while curbing the powers of the incoming democratic administration. Claudio Fuentes summed up the balance of civil-military power this way: "If there is a country in which it seems almost impossible to

⁵⁴ República de Chile, Constitución 1980 con reformas hasta 2005, art. 96, <http://pdba.georgetown.edu/Constitutions/Chile/chile05.html>.

⁵⁵ República de Chile, Ley Reservada del Cobre 13.196, 1958.

develop civilian policies on military affairs, given the legacy of inherited legal constraints, that country is Chile.”⁵⁶

It is within the limits imposed by the military that Aylwin’s achievements (or lack thereof) have to be assessed. On human rights the Aylwin government quickly calculated that any effort to prosecute military officers would be futile, since Pinochet had warned the government not to put any of his men in the dock. The high courts themselves were Pinochet appointees and profoundly servile to the former military regime, refusing to admit that human rights violations had occurred, and castigated those who thought otherwise.⁵⁷ Aylwin did manage to create a truth commission whose report on the disappeared met with scathing criticisms from the army. The president had to muster all of his influence to defend the commission and contain the fallout. This was a significant accomplishment, leading human rights activist José Zalaquett to say, “The most possible has been done in the least time possible.”⁵⁸

In other domains, the military proved to be equally difficult. The democratic government could not assert a stronger role in the management of defense policy or military affairs because laws written during the final years of the dictatorship gave each service branch the power to define its own objectives. For this reason, Pinochet considered the Defense Ministry to be peripheral and its minister nothing more than a bureaucrat, refusing to meet with him, instead insisting on face-to-face encounters with the president (see Chapter 5).⁵⁹ To have allowed Pinochet to be dismissive of the president’s political appointees would only have invited greater efforts by the army commander to disrupt civil-military lines of authority. Thus, in a May 28, 1990, meeting, Aylwin informed Pinochet that it was not the army’s business to question political decisions made by the president, nor was it the general’s prerogative to disregard the chain of command.⁶⁰ The president clarified lines of authority and spheres of influence, demonstrating a conviction not to be cowed into submission by the general.

⁵⁶ Claudio A. Fuentes, “After Pinochet: Civilian Policies toward the Military in the 1990s,” *Journal of Interamerican Studies and World Affairs*, 42, 3 (Fall 2000), 111–42.

⁵⁷ Appellate court judge Carlos Cerda was singled out for punishment for his courageous efforts to keep alive judicial investigations into the disappeared. Interview with David Pion-Berlin, July 1995, Santiago, Chile.

⁵⁸ David Pion-Berlin and Craig Arceneaux, “Tipping the Civil-Military Balance: Institutions and Human Rights Policy in Argentina and Chile,” *Comparative Political Studies*, 31 (October 1998), 652.

⁵⁹ Fuentes, “After Pinochet,” 121.

⁶⁰ *Foreign Broadcast Information Service-Latin America*, April 18, 1991, p. 24.

But despite his best efforts, he could not convince the military brass to respect and work with the Defense Ministry. President Aylwin had to rely on other ministers to negotiate an end to disputes that periodically flared up between the government and armed forces. This circumvention of the defense minister resolved the short-term crisis but revealed just how weak Chile's ministerial control over defense and military affairs was.

President Eduardo Frei (1994–2000) adopted a strategy of accommodation with the military while making defense a low priority.⁶¹ Frei began his presidency by choosing not to press too hard for constitutional changes that would have reduced the military's institutional powers and by not vetoing military promotions. His new minister, Edmundo Pérez-Yoma, developed a rapport with Pinochet so that civil-military affairs would not interfere with more pressing matters. In fact, Pérez-Yoma was all too willing to cede decision-making authority to the generals, becoming a strong advocate for military positions (i.e. on human rights) with the Frei administration.

The government released the region's first "White Book" of defense in 1997. This was an important achievement because it demonstrated that public officials took defense seriously and that the military would welcome their collaboration. While all contributors agreed the interactions were positive, the military's contribution to the final draft was decisive, and not surprisingly, the report did nothing to promote reform. To the contrary, it reinforced the prevailing military doctrines, missions, and defense structures.⁶²

The Frei administration had no human rights policy to speak of, but external events kept interceding to put human rights back on the agenda. Concerted pressures from the United States compelled Chile to make an exception to the Amnesty Law and prosecute former DINA head Manuel Contreras for having masterminded the assassination of Orlando Letelier in Washington, DC, in September 1976. In May 1995 Chile's Supreme Court sentenced Contreras to seven years in prison. Frei immediately sought to assure the armed forces that his was an unusual case that would not presage other indictments. The army managed to squeeze concessions from Frei in exchange for turning Contreras over to the

⁶¹ Fuentes, "After Pinochet," 127.

⁶² *Libro de la Defensa Nacional de Chile*, 1997, p. 85, www.resdal.org/Archivo/do000018.htm.

authorities.⁶³ When Pinochet stepped down as army commander in March 1998, he assumed position as an appointed senator. Many *Concertación* members signed a petition to have him impeached, but President Frei opposed it and prevailed.

And then, seven months later, while on a trip to England, General Pinochet was arrested by Scotland Yard at the request of Spanish judge, Baltazar Garzón, who sought the general's extradition to Spain to stand trial for crimes against humanity. The British House of Lords justices would deny Pinochet's claim he enjoyed immunity from prosecution as a former head of state, arguing that his conduct was unacceptable under international law and that he could be extradited. Over the next year Pinochet's lawyers engaged in legal maneuvers while Pinochet feigned mental incapacity, and that finally won his release to return home to Chile.

But the entire episode from arrest to indictment to trial and release constituted a watershed moment for Chile, not only for its human rights policies but for the entire civil-military relation. The European judicial actions catalyzed change in Chile by deflating Pinochet's stature among Chileans of all persuasions. It changed the dynamic within the Chilean courts, as judges now reopened cases against offenders and indicted Pinochet himself while stripping him of parliamentary immunity. Political parties on the right started distancing themselves from Pinochet and his authoritarian legacy in order to attract moderate Chilean voters who wanted to see justice done.

Indeed, the military itself began to soften its position, especially after a 1999 ruling by Judge Juan Guzmán that treated disappearances as kidnappings and that allowed judicial inquests to remain open until the whereabouts of victims could be established. The military then agreed to an informal dialogue with its human rights opponents, which led to public admissions of wrongdoing and a willingness to divulge information (albeit limited) on the fate of the disappeared. Marcos Robledo considers the roundtable discussions (*Mesa del Diálogo*) "the most important moment toward the military's adherence to a rule of law and subordination to the state."⁶⁴

⁶³ Gregory Weeks, *The Military and Politics in Post-Authoritarian Chile* (Tuscaloosa: University of Alabama Press, 2003), 103; Fuentes, "After Pinochet," 130.

⁶⁴ Marcos Robledo, "Más allá de las reformas de la defensa," in Pion-Berlin and Ugarte (eds.), *Organización de la defensa*, 167.

Once the political and electoral equation changed, so too did the balance of civil-military power. The military became more isolated, no longer able to reliably depend on the administration to acquiesce or on its conservative allies in Congress to block undesired legislation. Socialist Party candidate Ricardo Lagos would become president in March 2000 with a commitment to human rights and defense reform. He would sponsor a package of legislative initiatives to revise the 1980 Constitution, as had his predecessors. Only this time, after years of resistance, the parties of the right finally relented and allowed the reforms to pass. The 2005 constitutional amendments stipulated that the military was no longer a guarantor of the institutional order, thus making a clear distinction between internal security and external defense; they granted the president the right to remove his military commanders before their terms expired; they relegated the NSC to an advisory role to be convened only by the president; and the reforms eliminated the appointed senators.⁶⁵ Taken together, these amendments depleted most of the military's authoritarian reserves of power, reduced its prerogatives, and rendered it a much more subordinate institution.

With the coming to power of President Michele Bachelet in March 2006, the process of defense reform would become more thoroughly institutionalized. Bachelet – herself a political prisoner under the dictatorship – was Lagos's former defense minister and the first woman to assume that post in Chilean history. Long-awaited reforms to the Defense Ministry were finally realized in 2010 with the passage of Ley 20.424.⁶⁶ This is an Organic Ministerial Law that made the ministry the president's key institutional vehicle to govern the defense sphere, the true center of gravity for the formulation and management of defense policy.⁶⁷ It essentially turned the old “bottom-up” defense system on its head, empowering the ministry and its civilian minister to propose all defense and military policies as well as to assign and administer the resources required in this sector. And it forged a clear chain of command, running from the president to the defense minister to the chief of the joint military staff (JMS).⁶⁸

⁶⁵ *The Economist*, “Chile: Democratic at Last,” September 15, 2005; Robledo, “Más allá,” note 11, 173–74.

⁶⁶ Chile, Biblioteca del Congreso Nacional de Chile, Ley 20.424. Estatuto Orgánico de Ministerio de Defensa Nacional, February 4, 2010.

⁶⁷ *Ibid.*, art. 3. ⁶⁸ *Ibid.* Also see Robledo, “Más allá,” 180.

With reformist laws in place, it fell to Bachelet's successor, President Sebastian Piñera (2010–14), to implement the changes. This he did, though not without difficulty. His ministry suffered from instability due to a rapid turnover of ministers (three were appointed) and a young and inexperienced civilian staff. Unfortunately, Piñera will probably be best remembered for having drafted a deeply flawed, new national security and defense strategy that met with withering criticism from nearly all quarters in and outside of government. So harsh were the critiques that the president had to embarrassingly withdraw his bill from congressional consideration. Piñera's strategy was taken to task for having subsumed defense within the larger, ill-defined rubric of national security and in that manner licensing the armed forces' potential re-intervention in the domestic order while justifying even larger military budget shares. In addition, Piñera left the drafting of the document entirely in the hands of a small defense ministerial team, never having consulted with other cabinet officials or outside experts.⁶⁹

With the ministerial reforms in place, the military still retains an institutional presence. The JMS counsels the minister and coordinates all joint military action, while the junta of military commanders survives as the primary advisory unit to the Defense Ministry. This dual military input challenges the civilian ministry officials to "raise their game" so that they can actively participate in the elaboration of defense policies. To do that, MOD would hire a permanent civilian staff, replacing the contracted employees that served temporarily in the ministry.

Still challenges remain. Chile has yet to downgrade its service heads from commanders to chiefs of staff in order to lessen their power.⁷⁰ "Servicism," which is the power of the separate branches of the military to advance their narrower agendas at the expense of overarching priorities as set by the government, remains a problem in Chile. Finally, some incremental changes have occurred in education, but the armed forces still enjoy considerable autonomy over pedagogical programs. Neither the Ministry of Defense nor the Education Ministry has any sway over the military school curriculum, and those schools remain apart from the nation's system of higher education (see Chapter 6).

⁶⁹ Pablo Rivas Pardo, "Estrategia nacional de seguridad y defensa de Chile: Sistematización de sus críticas y alcances," *Estudios de Seguridad y Defensa*, 4 (December 2014), 121–52. Also see Jorge Burgos, "¿Que hacer con la estrategia nacional de seguridad y defensa?" *Cooperativa*, July 30, 2012, <http://blogs.cooperativa.cl/opinion/politica/>.

⁷⁰ Constitution of Chile, art. 32, no. 18.

Uruguay

Uruguay is often pointed to as one of strongest enduring democracies in Latin American history. By many criteria, including the extension of the franchise earlier than other states, its tolerance of opposition, and the strength of its party system, scholars could agree with Luis González that by the mid-1960s “Uruguay was probably the most democratic polity in South America.”⁷¹ That tradition was obviously broken with the military takeover in 1976. But with the end of dictatorship in 1985 most analyses conclude that Uruguay resumed where it left off, having fully recovered its leading democratic status. That view remains hegemonic among scholars, undiminished by the passage of time.

Since control over the military is considered one of the key criteria for assessing the strength of democratic rule, that suggests an interesting anomaly in the Uruguayan case. Certainly until 2006, Uruguay was notable for having made the *least* progress among its Southern Cone neighbors in the realm of human rights, military, and defense reform. Until then, there were no investigations into abuses or trials for suspected perpetrators; there were no revisions of military statutes or military doctrine, education, strategies, or deployment; nor was there a single defense-related piece of legislation introduced into the Congress. Moreover, nothing had been done to change the authority, structure, and functioning of the Defense Ministry.⁷² If one were analyzing the Uruguayan democracy from the vantage point of its civil-military affairs, the inevitable conclusion would be that the country had, at the very least, some serious pending matters to address.

What were the reasons for this stagnation? It is, we argue, difficult to lay all of the blame at the barrack’s door. While the military put up strong resistance to reform during the democracy’s early years, that resistance was largely confined to the issue of human rights. On a range of other military and defense-related issues, military obstruction was much less imposing. The passage of the sweeping Amnesty Law in 1986 and its approval by the public in a national referendum three years later had a calming effect on the officer corps. The Uruguayan armed forces were

⁷¹ Luis E. González, *Political Structures and Democracy in Uruguay* (South Bend, IN: University of Notre Dame Press, 1991), 4.

⁷² Julián González Guyer, “Relaciones FF.AA y sociedad en Uruguay: De anomalías democráticas de vieja propasia y su posible superación,” in Ernesto López (ed.), *Control civil sobre los militares y política de defensa en Argentina, Brasil, Chile, y Uruguay* (Buenos Aires: Editorial Altamira, 2007), 116.

less overtly antagonistic to reform than their Chilean counterparts, where by contrast considerably more was achieved by democratic leaders.

The problem lies more squarely on the civilian side of the ledger. Time and time again, political leaders failed to assume their burden of leadership. Why they failed to lead requires an extended narrative, which is reserved for the concluding chapter. Briefly, politics abhors a vacuum, and in the absence of civilian initiatives, military officers filled the gap. That policymakers could have stepped in had they so chosen is proven by the post-2005 accomplishments of the *Frente Amplio* governments. If any governing political party was to have generated military animosity, it would have been the decidedly leftwing *Frente Amplio* – erstwhile enemy of all those who had worn a uniform. And yet during its rein, incremental gains in human rights justice and defense reform have been made with relatively little resistance put up on the part of active duty officers.

The beginning of the end for the Uruguayan dictatorship occurred in December 1980 when its proposed new Constitution went down to crushing defeat in a popular referendum, 57.2 to 42.8 percent. The armed forces were stunned, but they shouldn't have been. They had in the years preceding made no effort to build any political support for their program. The military's failure to develop linkages with important social, economic, or political groups would prove to be its undoing.⁷³ When the armed forces needed public affirmation the most – in 1980, when the new Constitution went before the electorate for approval – that affirmation was not forthcoming.

It would take another five years to complete the transition to democracy, a path marked by fits and starts. The armed forces had been defeated at the polls but were not a vanquished institution like their Argentine counterparts. They had presided over moderate economic growth and were able to maintain sufficient unity in the ranks. Still the balance of power had now shifted, and the military would have to negotiate the contours of the transition with the democratic opposition.

Talks at the military *Club Naval* in 1984 resulted in an agreement that set the guidelines for a transition to democracy and included the repeal of the junta's Institutional Act 1 that had suspended elections. The NSC would be an advisory body only, future constitutional reforms would be written by a constituent assembly, and civilians could only be tried in military courts during a state of insurrection.⁷⁴ What was left unsaid was

⁷³ Arceneaux, *Bounded Missions*, 183–222. ⁷⁴ Ibid.

almost as important as what was said: the military would not be subjected to human rights prosecution. With that unofficial understanding in mind, the path was cleared for competitive elections, which took place in the fall of 1984.

Newly elected President Julio María Sanguinetti (1985–90) had led the democratic delegation at the *Club Naval* talks and was now faced with important decisions regarding the military. Would he try to bargain with army head General Hugo Medina for a new human rights agreement or leave things as they were? The public at the time favored some form of retribution for the military offenders, but Sanguinetti would not heed the call and instead sponsored an amnesty bill for all security offenders that was sweeping in its exculpation of the armed forces. The bill passed in 1986 and was upheld by a referendum in April 1989.⁷⁵

If Sanguinetti seemed unusually risk averse – at least compared to his Chilean presidential counterpart – an explanation could be found in his personal, pragmatic approach to the transition as well as in his political calculations. Sanguinetti reasoned that the pursuit of justice would yield doubtful rewards and was not worth the perceived costs. Democracy was the best defense against a resumption of state terror, and to protect that democracy from threats against it, he would not pursue the moral course of retribution and instead opt for appeasement. Unlike Chilean President Patricio Aylwin, who came to power thanks to the support of the center-left *Concertación* coalition – which included the Socialist Party – Sanguinetti owed a debt of gratitude to the more conservative Colorado Party and its voting constituency, and for them human rights did not have quite the same urgency as they had for Aylwin's voters.⁷⁶

Little progress was made on any other civil-military affair during this period. The government did manage to shift promotion authority from the service heads to the chief executive.⁷⁷ It also returned the military to the traditional national defense missions acting “always under the supreme command of the president in accord with the respective minister.”⁷⁸ But

⁷⁵ República Oriental de Uruguay, Ley de Caducidad (Ley 15.848), in *Informática parlamentaria*. Montevideo: Poder Legislativo, November 15, 1995.

⁷⁶ David Pion-Berlin, “To Prosecute or to Pardon? Human Rights Decisions in the Latin American Southern Cone,” *Human Rights Quarterly*, 16 (February 1994), 105–30.

⁷⁷ República Oriental de Uruguay, Ley 15.808 (modifies Ley Orgánica 14.157), April 7, 1986, art. 1.

⁷⁸ *Ibid.*, art. 2.

by and large, the president and his government were focused on “settling” the human rights issue once and for all while keeping the peace with his military commanders. With the referendum behind him, the president believed he had closed one chapter in Uruguayan history and that he and the nation were ready to write a new one. But with the military having achieved judicial impunity, with no changes in defense doctrine or organic military laws, and with a Defense Ministry still dominated by military personnel, civil-military problems were being swept under the rug. While the president boasted about the country moving to the next democratic phase of consolidation, Defense Minister General Hugo Medina, when asked about his acceptance of a future *Frente Amplio* presidency, said this: “I would not be telling the truth if I said that for the Armed Forces the winner would make no difference.”⁷⁹ Clearly at this stage, not all Uruguayan citizens were free to choose their own leaders, unencumbered by military warnings.

With the coming to power of Blanco Party President Luis A. LaCalle (1990–95) attention turned away from human rights toward matters of defense reform. In 1991, the president commissioned a study to define a new defense doctrine and ordered a reappraisal of the national defense system, calling on each service to revise its hypotheses of conflict in light of the Cold War’s end. However, by year’s end nothing was done, and by the end of LaCalle’s term he had nothing to show for his efforts.⁸⁰ The president, his minister, and his civilian advisors lacked the expertise and ministerial capacity to push for reforms. When it came to advice, the president and his minister deferred to the *Junta de Comandantes*, who were only too happy to oblige them with “authoritative” views on the drawbacks to defense reform.⁸¹ The organizational lines of authority allowed the *comandantes* to interface directly with the president, bypassing the defense minister. This gave the junta an inordinate amount of influence because of its close access to the president. At the same time, the president did nothing to push back against the junta’s influence.

During Julio Sanguinetti’s second term (1995–2000) reforming the state was a top priority, but this had practically no effect on defense or

⁷⁹ FBIS-LAT, September 12, 1989, p. 42.

⁸⁰ Pion-Berlin, *Through Corridors of Power*, 181–89.

⁸¹ The junta was, according to the 1974 Organic Law of the Armed Forces, the principal advisory organ to the political leadership. República Oriental de Uruguay, Ley Orgánica Militar 14.157, Diario Oficial, March 5, 1974, arts. 15–16.

the military. The government issued a slim version of a *Libro Blanco*, or “White Book,” in 1999, which to its credit did break with old national security doctrine thinking by separating national defense from security.⁸² Still, an internal security role was reserved for the armed forces to aid the police where need be. There was little else to commend the White Book, which gave no details on any subject let alone define any kind of strategic blueprint in the new century.⁸³

Military reform continued to be a pending theme during the next five years under Colorado President Jorge Batlle Ibáñez (2000–5) while parliament stood at the margins, failing to take up any significant legislation on defense. In fact, during the 20 years between 1985 and 2005, the Congress never once considered proposed legislation from any administration on any defense-related matter.⁸⁴ Very early in his term, President Batlle set a hopeful tone when he quickly dismissed the head of armed forces joint chiefs for saying that the counterinsurgency war never ended and that sooner or later, the Uruguayan military would have to take up the fight again against the nation’s “enemies.”⁸⁵ Disciplinary actions of that sort are important for enforcing the idea that the military cannot publicly take issue with its own government. The president became the first post-authoritarian leader to meet with families of “Dirty War” victims and to acknowledge that civilians had died at the hands of their military torturers.⁸⁶ He also authorized a peace commission to look into the fate of the disappeared, though its investigatory capabilities were limited.⁸⁷

By 2002, the government was consumed by one of the worst economic crises in modern Uruguayan history with a deep recession marked by skyrocketing unemployment, poverty rates surpassing 30 percent, an industrial sector in freefall, and the collapse of the state bank. President Batlle never really recovered from the economic catastrophe, losing most

⁸² “Bases para una política de defensa nacional,” in RESDAL, *Red de seguridad y defensa de América Latina*, www.resdal.org/Archivo/uru-fore.htm.

⁸³ *Ibid.*, Chapter IV.

⁸⁴ See Yamandú Fau, “Defensa nacional: la visión del partido Colorado,” in Julián González Guyer (ed.), *Debate nacional sobre defensa: Aportes para una ley de defensa nacional* (Montevideo: Ministerio de Defensa Nacional, 2006), 55–59.

⁸⁵ Daro Montero, “Military Chief Sacked for Controversial Remarks,” *Interpress News Service*, April 6, 2004.

⁸⁶ Observatorio, November 10–16, 2001.

⁸⁷ Luis Roniger, “Transitional Justice and Protracted Accountability in Re-democratised Uruguay, 1985–2011,” *Journal of Latin American Studies*, 43, 4 (November 2011), 693–724.

of his popular support and credibility. Thus he was in no position to advocate for defense reform or human rights and did not do so. Just before the end of his term, his Defense Ministry did manage to release a report on national defense.⁸⁸ The report did divulge a level of detail about the defense system – but did so without critical commentary, revealing just how urgently reform was needed.⁸⁹ Greater transparency, yes, but without transformation – this was the leitmotif for the Batlle Ibáñez government.

Julían González Guyer has argued that the fact that four consecutive administrations (1985–2005) failed to push for defense reform had less to do with the power of the armed forces and more to do with political will and its absence.⁹⁰ How else, he suggests, is one to account for bolder and swifter progress made in Chile where Pinochet's forces held considerably more reserves of political power than did the Uruguayan generals? Chilean leaders were determined to govern in defense; Uruguayan politicians were not. If political will was the missing ingredient, then it would take a leftwing *Frente Amplio* administration to finally summon the resolve to bring perpetrators to justice, start a national dialogue on defense, and pass the first national defense law in Uruguayan history.

Frente Amplio leader Tabaré Vázquez (2005–10) won the presidential elections of 2004 with 52 percent of the vote, avoiding a runoff with his nearest rival. He became the first member of a leftwing party to win the presidency in Uruguayan history, ending the century-long grip on executive power held by the *Colorados* and *Blancos*. His party also managed to win absolute majorities in both chambers of the Congress, affording the new administration unique legislative opportunities. With a clear electoral mandate and as head of a political party whose members had been harshly persecuted by state security agents in the 1970s, he seemed determined to find a way to investigate the fate of the disappeared and bring to justice those who perpetrated human rights crimes. Exploiting loopholes in the 1986 Amnesty Law, the president encouraged the courts to renew inquiries into cases that had been previously shelved.⁹¹ The courts took up the challenge, testing the limits of the Amnesty Law. In October 2009,

⁸⁸ República Uruguay, Ministro de Defensa Nacional, *La defensa nacional: Aportes para un debate* (Montevideo: Oficina de Relaciones Públicas del Ministerio de Defensa Nacional, 2005).

⁸⁹ *Ibíd.*, 138. ⁹⁰ González Guyer, "Relaciones FF.AA. y sociedad en Uruguay," 124–26.

⁹¹ Roniger, "Transitional Justice," 715.

Gregorio Alvarez, former commander in chief of the army, was sentenced to 25 years in prison for 37 homicides committed under the mantle of Operation Condor. Four months later, former president Juan Bordaberry was convicted and sentenced to 30 years for having undermined the constitution when he signed a decree in 1973 that dissolved the parliament and paved the way for a coup in 1976.

National defense received renewed attention under *Frente Amplio* rule. In fact, for the first time in modern Uruguayan history, defense would become the subject of a lively public debate beginning in October 2005, sponsored by the Defense Ministry with the support of the United Nations (see Chapter 3). The purpose of the debate was to bring the topic of defense and the military's role into the public realm and to set the stage for new legislation. Historically, the Uruguayan public has oscillated between anti-militarism and apathy, driven by a perception that the military is useless since it cannot defend the nation against its two powerful neighbors. As a result, defense had become, for society, a devalued subject.⁹² Not surprisingly, that view has also reached upward to the political class that sees no advantage in pursuing defense reform with a disinterested electorate. Moreover, the military has held a virtual monopoly on defense wisdom, which is only reinforced by the disinterest shared by civil and political society. To break out of that vicious circle, government leaders would have to reframe defense as a central public policy, not an esoteric subject that only a select few were aware of. To that extent, the 2006 national debate seemed successful, at least at the time. What remains doubtful is whether the debate has sustained and enlarged public interest in defense well into the future.

Human rights remain in a legal limbo. *Frente Amplio* (FA) President José Mujica (2010–15) made efforts to repeal the amnesty law through the legislative process but came up short. The public had pronounced on two occasions – in 1989 and 2009 – its opposition to overturning the Amnesty Law, and the Mujica government and its F.A. supporters were careful not to defy popular will.⁹³ Instead, they explored ways to circumvent the law to permit executive branch review of some 80 human rights cases that had been previously dismissed.⁹⁴ In human rights, as in military and defense affairs, considerably more work needs to be done before Uruguay can

⁹² González Guyer (ed.), *Debate nacional sobre defensa*, 22.

⁹³ In 2009 the referendum seeking to repeal the amnesty law went down to defeat 52 to 48 percent.

⁹⁴ Roniger, "Transitional Justice," 722.

consider its CMR to have been consolidated and its armed forces sufficiently inserted into the democratic framework.

CONCLUSION

These countries all emerged from long periods of military rule with the task of reconstructing democracies and reformulating CMR that had been subverted (and inverted) by *de facto* regimes. Outgoing commanders were certainly in a better position to influence the course of events than in countries where civilians were at the center of power before the handover (Spain) or where there had been no tradition of corporate assertiveness within the ranks (East European republics). But they did not all exit office with the same degree of power, and so the initial opportunities and constraints differed as well. Chile's and Brazil's militaries were in the best positions to shape events, Uruguay's was less so, and Argentina's position was weakest. Regime transitions undoubtedly influenced the amount of political space available for democratically elected leaders to transact changes in CMR. It is not surprising that the first post-authoritarian government in Argentina had considerable room for maneuver, while Brazil's government seemed hemmed in by comparison. At the same time, transitions were seldom powerful enough to set post-transitional politics in concrete. We would be hard pressed to account for the twists and turns that CMR took over the decades by a reversion to the politics of transition. For that reason, other factors must be considered, and they will be elaborated upon in the concluding chapter.

Electoral calculations did differ between political parties when it came to human rights. Left-of-center incumbents had more to gain from human rights advocacy than center-right incumbents. Those on the left had constituents who were much more insistent, often vocal, that some form of justice be served on security agents who had perpetrated crimes in the past. And for the most part, left-of-center incumbents did do more on human rights than their conservative counterparts. Conversely, the center-right parties were cautious or inactive on human rights.

When it came to either military or defense reforms, the preferences of voters also mattered, but in ways that could not discriminate between countries. For some time, it has been a general rule of thumb that in all the Southern Cone countries and Brazil, voters have cared little if at all about military and defense-related issues. So long as the military is not fomenting coups, voters pay no attention to the institution. Defense is of even

more remote interest to citizens who do not benefit much from defense industrial spending and who perceive, quite correctly, that their nations face no imminent or long-term security threats from abroad, the kind that would warrant expanded military capabilities.⁹⁵ Ironically, this perception emerges from the stunning successes their own governments have had at settling age-old geopolitical disputes with their neighbors, forging an unprecedented subregional peace that makes for a more relaxed security environment. They forged this peace almost entirely through diplomacy, not through deterrence.

If voters did not prioritize defense, why should their political leaders? That raises the obvious question as to why any policymakers from this subregion would have *ever* paid attention to defense without a persuasive electoral logic to it. The fact is, as this chapter has shown, leaders have, albeit it only occasionally, focused on defense. Why? While a more elaborate explanation awaits the concluding chapter, a brief reflection is in order here. It is precisely the element of voter apathy that grants civilian leaders some political space for crafting policy in this arena. Where reforms (i.e. ministerial reorganization, passage of new defense laws) are not expensive, and thus do not result in any harmful guns-versus-butter trade-offs, there are no electoral costs to the government for pursuing such changes. Voters (taxpayers) will not get exorcized by policies that do not negatively affect them. That in turn means that there is a policy “space” available for leaders to seize, *should they decide to do so*, assuming there is no concerted military resistance. What would properly motivate them to exploit the opportunities is a subject to be examined in the concluding chapter.

Enlightened leaders know full well that there *is* a cost to inaction. Without civilian leadership, militaries – which are inherently conservative institutions – will fail to adapt their behavior and ideas to changing circumstances. Their versions of proper defense and security policy may not mesh with the needs of a modernizing democracy. The less concern civilian leaders show for defense, the more the military will resort to self-management, which in turn could breed greater levels of autonomy and pose problems for civilian control. Hence, with political room to maneuver, some policymakers have wisely chosen to advance a reform-minded agenda that has already reaped dividends. Others have not, yielding unhealthy consequences for the future of CMR in this subregion.

⁹⁵ These observations were first formulated by Pion-Berlin and Trinkunas in “Attention Deficits,” 76–100.